

and likewise all other articles which shall occasionally be wanted in the engineer department, which he has undertaken to do for 10l. per cent. on the market prices at the place (costs and charges); a profit which appears to be reasonable, inasmuch as it is greatly under that hitherto charged."

(After some orders given relative to the plaintiff.)

"These instructions, and all others that concern the interest of the Crown, I am persuaded that you will cheerfully give him."

A letter from the defendant to the plaintiff, dated May 17th, 1782;

"Having thought it fit to direct Lieutenant-Governor Sinclair, commanding the post of Michilimakinac, to employ you in supplying such quantities of corn and grease, and all other articles, as shall be wanted for the use of the Crown at that post, in consequence of your offer to furnish the same at the rate of 10l. per cent. on the costs and charges here and to Michilimakinac, for all articles (corn and grease excepted), and these at the same rate where they shall be purchased, for which sufficient vouchers are to accompany your accounts, you are therefore hereby directed to make applications from time to time to Lieutenant-Governor Sinclair for such direc-[174]-tions, information, and assistance, as will best enable you to execute that business to the greatest advantage for the public interest, as your continuing in this employ will entirely depend upon your conduct therein."

Several special orders were proved from Sinclair to the plaintiff for supplying particular articles, amongst which was the following, dated 1st of August 1782;

"You will be pleased for the future, without any requisitions in form, to provide for the different services of the post, in the manner least expensive to Government, and still equal to the necessities of the different departments."

In pursuance of these orders the plaintiff furnished articles to a considerable amount. But when his bills, at the top of which was prefixed "Government debtor to George Macbeath for sundries paid by order of Lieutenant-Governor Sinclair," were sent to the defendant at Quebec, he made objections to several of the articles as being unreasonable, and furnished contrary to subsequent instructions.

Afterwards, on the 2d of July 1784, Mathews (the defendant's secretary) wrote the following letter to Messrs. Dobie and Forsyth, who were agents for the bill-holders;

"I am commanded by his Excellency General Haldimand to acquaint you, that, in consequence of instructions from the Lords Commissioners of His Majesty's Treasury, in answer to a representation made by him to their Lordships, concerning the bills drawn upon him by Lieutenant-Governor Sinclair in the year 1782, which he thought it necessary to refuse payment of, his Excellency, in conformity with the offer which he made to the holders of the said bills in the year 1782, is still willing to pay such parts of the charges, for which the said bills were drawn, as at that time appeared upon examination to be reasonable."

(After stating the amount of goods furnished for the engineer department to the value of 9266l. 5s. 1½d. which the governor was willing to pay, the letter proceeded thus,)

"His Excellency will also pay for all the goods or utensils furnished for the engineer department, so far as they shall appear to be charged at reasonable prices, to be ascertained by merchants appointed for that purpose by his Excellency and the holders of the bills. And he will further pay for the labour, so far as the accounts thereof shall appear to be proper-[175]-ly vouched. But with regard to the charges for the hire of horses and carts, his Excellency, from the exorbitance of the charge, will have nothing to do therewith, leaving nevertheless to the complainants to take such methods to procure redress therein, as they shall think proper.

"With respect to the Indian department, his Excellency will pay such part of the articles as compose the accounts, for which the bills were drawn, as were not purchased contrary to his orders to Lieutenant-Governor Sinclair dated 22d August 1781, and except also for the articles furnished by Lieutenant-Governor Sinclair himself, which his Excellency will not pay, as they were received from the Indians, in expectation of being well repaid by the presents, which they afterwards received from the King's stores."

(The letter then stated the account of Indian expenses amounting to 12,715l. 9s. 10d. and concluding by saying,)

"You will therefore see by the foregoing statement, that the sum proposed by